DATED 5 JUNE 2019

THE COUNCIL OF THE CITY OF SALFORD

– and –

RIZQ DA'UD AL-SAFI

– and –

EGM HOLDINGS LIMITED

AGREEMENT

pursuant to section 106 of the Town and Country Planning Act 1990 (as amended) relating to land at Ashtonfields, Grosvenor Road, Walkden

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City Solicitor
P O Box 532
Town Hall
Albert Square
Manchester M60 2LA
OUT1105/591

THIS AGREEMENT is made the 5th day of June 2019

BETWEEN:

(1) **THE COUNCIL OF THE CITY OF SALFORD** of Salford Civic Centre, Chorley Road, Swinton, Manchester M27 5DA (**"the Council"**),

(2) **RIZQ DA'UD AL-SAFI** of 17 Godolphin Close, Eccles M30 9EW (**"the First Owner"**),

(3) **EGM HOLDINGS LIMITED** (incorporated in England with company number 09954441) whose registered office is at ~~The Courtyard, 75a Odsall Road, Bradford, West Yorkshire BD6 1PN~~ 8/9 Feast Field, Horsforth, Leeds LS18 4TJ (**"the Second Owner"**), SH

BACKGROUND

A The Council is the local planning authority for the purposes of the Act in relation to the Site and is the authority by whom the obligations hereby created are enforceable The Development will be carried out on the Site The Site is situated within the Administrative Boundaries of Salford and this planning obligation is enforceable by the Council

B The First Owner is the freehold owner of that part of the Site registered at the Land Registry with title absolute under title number GM285080 together with but subject to all matters contained or referred to in the title registers thereunder

C The Second Owner is the freehold owner of that part of the Site registered at the Land Registry with title absolute under title numbers MAN66994, MAN69951 and MAN69952 together with but subject to all matters contained or referred to in the title registers thereunder The Second Owner has applied to the Land Registry to be registered as freehold owner of title numbers MAN132927 ~~and MAN132125~~ SH

D The Application was submitted to the Council on behalf of the Second Owner for planning permission to carry out the Development in the manner set out in the plans, specifications and particulars forming part of the Application

E The Council as local planning authority is satisfied that the Development is such as may be approved by the Council under the Act and is minded to grant planning permission for the Development in accordance with the Application but having considered the SPD and the Regulations is desirous of the Owner entering into this Agreement without which planning permission would not be granted

F The SPD sets out a requirement to make contributions towards meeting expenditure relating to education, open space, public realm and transport improvements and the calculation of the Contributions is based upon the total of the contribution amounts in respect of each of these areas of expenditure The Council has determined that the Development in order to comply with the SPD will support the payment of £143,931 70 (one hundred and forty three thousand, nine hundred and thirty one pounds and seventy pence) as the **Maximum Contribution**

G The Owner have agreed to enter into this Agreement in support of the Application so as to create planning obligations in favour of the Council pursuant to section 106 of the Act and to be bound by and observe and perform the covenants hereinafter contained

H The Second Owner has stated that there are viability issues affecting the development of the Site and has submitted to the Council documentation in support of this contention The Council has accepted that at the date of this Agreement without a reduction in the Maximum Contribution the implementation of the Development is not viable The Council has agreed to accept the Initial Contribution in lieu of the Maximum Contribution on the basis of the information contained in the documentation relating to viability submitted by the Second Owner to the Council. The Owner have agreed to pay the Initial Contribution and to enter into the planning obligations contained herein requiring them to submit the Viability Appraisal and pay any Viability Payment found to be due in accordance with the provisions contained in this Agreement

I The planning purpose of this Agreement is to mitigate the adverse impacts of the Development in accordance with the development plan for the area and other material considerations The Council is satisfied that the obligations in this Agreement are,

a) necessary to make the Development acceptable in planning terms,

b) directly related to the Development, and

c) fairly and reasonably related in scale and kind to the Development

AGREED TERMS

1. DEFINITIONS AND INTERPRETATION

1 1 The definitions and rules of interpretation set out in this clause apply to this Agreement

"Act" the Town and Country Planning Act 1990 as amended by the Planning and Compensation Act 1991 and the Planning and Compulsory Purchase Act 2004 and the Planning Act 2008,

"Administrative Boundaries of Salford" all the wards that together comprise the city of Salford,

"Affordable Housing" affordable housing as defined in Annex 2 of the National Planning Policy Framework 2018 (as may be updated or replaced with an equivalent policy from time to time) that will be available to persons who cannot afford to rent or buy housing generally available on the open market,

"Agreement" this agreement,

"**Anticipated Date of Completion of Construction"** means the date upon which the Owner anticipates that the Completion of Construction of the relevant percentage of Dwellings referred to in this Agreement shall take place,

"Application" the application to which the Council gave the reference 18/72094/FUL for planning permission for the construction of 18 dwellings with associated access, car parking and landscaping works,

"Calculation Date" shall be upon the Completion of Construction of 75% of the Dwellings, or the date which is five years from the date of this Agreement, whichever occurs earlier,

"**Chartered Surveyor**" a professional expert who is a chartered member of the Royal Institution of Chartered Surveyors with a minimum of ten (10) years post-qualification experience,

"Commencement of Development" the date upon which the Development shall begin by the carrying out of a material operation in accordance with the provisions of section 56(4) of the Act PROVIDED THAT any works of or associated with site clearance, remediation works, environmental or archaeological investigations, site and soil surveys, erections of contractors' work compound, erection of site office, erection of fencing to site boundaries, marking of site boundaries and laying out of access roads and services shall for the purposes of the agreement be deemed not to be material operations and **"Commence"**, **"Commencement"** and **"Commenced"** shall be construed accordingly Commencement will be deemed to have taken place whether it takes place on the Site or on the land adjacent to the Site,

"Completion of Construction" the date upon which a valid certificate of completion shall have been issued in respect of the relevant number of Dwellings for the purposes of the Building Act 1984 and the Building Regulations 2010 or any amendment or replacement of the same and **"Completed"** and **"Completion"** shall be construed accordingly,

"Contributions" the Education Contribution, Open Space Contribution, Public Realm Contribution and Transport Contribution together,

"Development" the development undertaken on the Site pursuant to the Planning Permission as specified in the Application "Developed" shall be construed accordingly,

"Director" the Council's Strategic Director Place or such other officer of the Council as may from time to time be nominated in writing to act in place of the Council's Strategic Place,

"Dwelling" a unit of accommodation to be constructed on the Site as part of the Development pursuant to the Planning Permission and any Reserved Matters Approvals and **"Dwellings"** shall be construed accordingly,

"Education Contribution" the sum of £29,443 70 (twenty nine thousand four hundred and forty three pounds and seventy pence) Index Linked to be paid in accordance with Policy OB3 of the SPD which shall be expended by the Council as more particularly described in Schedule 4,

"Expert" a professional expert in town planning, who is a Chartered Member of the Royal Town Planning Institute with a minimum of ten (10) years post-qualification experience,

"Forward Funding Arrangement" a commitment to provide funding to assist the development of the project going forward with the sole aim of facilitating either a single sale of the whole or part of the Development, but not necessarily a commitment to purchase the Development, or the retention of the whole or part of the Development by the Owner on Completion of Construction as a Private Rental Sector (PRS) Investment For the avoidance of doubt funding not provided for the purposes outlined in the previous sentence of this definition but provided, for example, for the purpose of covering the construction costs of any dwelling that is to be sold on the Open Market to an individual purchaser will not be classed as a Forward Funding Arrangement,

"Forward Sale" the committed sale and purchase of the whole or part of the completed Development on agreed terms at a future date as evidenced by binding legal documents which are unconditional as to the sale of the whole or part of the completed Development and the requirement to undertake the construction of the Development and which detail (without limitation) payments made on completion of the sale of the whole or part of the completed Development and during the construction and on completion of the Development,

"GDC" means Gross development cost as defined in Appendix F of the RICS Guidance In addition the Council will accept in the calculation of GDC the actual costs incurred in the Development up to the time of preparation of the Viability Appraisal and such details shall be included in the Viability Appraisal provided always that any such actual costs are allowed for in Appendix F of the RICS Guidance,

"GDV" means gross development value as defined in Appendix F of the RICS Guidance together with the value of any grant funding/public subsidy received in respect of the Development In addition the Council will accept in the calculation of GDV the actual sale prices achieved at the development up to the time of preparation of the Viability Appraisal and detailed therein,

"Gross Margin" the GDV after deducting the GDC as more particularly detailed in the Viability Appraisal,

"Index Linked" adjusted on an annual basis or pro rata per diem from the date of this Agreement to the relevant date of payment in accordance with the Retail Price Index and "Index Linking" shall be construed accordingly,

"Initial Contribution" the sum of £90,000 (ninety thousand pounds) Index Linked to be paid in accordance with the provisions of contained in Schedule 3,

"Interest" interest at 4% (four per cent) above the base lending rate of the Bank of England from time to time,

"Maximum Contribution" the sum of £143,913,70 (one hundred and forty three thousand nine hundred and thirteen pounds and seventy pence) Index Linked,

"Occupation" means occupation of any part of the Development for the purposes permitted by the Planning Permission but does not include use by personnel whilst engaged in construction, fitting out or decoration of the Dwellings or occupation for marketing or display or occupation in relation to security operations and "**Occupy**" shall be construed accordingly,

"Open Space Contribution" the sum of £83,970 (eighty three thousand nine hundred and seventy pounds) Index Linked to be paid in accordance with Policy H8 of the UDP and the provisions of Policy OB2 of the SPD and directed towards the provision or improvement or maintenance of public open space in the vicinity of the Site which shall be applied as more particularly described in Schedule 4,

"Plan" the plan attached to the agreement,

"Planning Permission" the planning permission granted pursuant to the Application substantially in the form as appended at Schedule 2 and as may be amended by any non material amendment,

"Pre Sale" means a Forward Sale or Forward Funding Arrangement or Private Rental Sector Forward Funding Arrangement of the whole or part of the completed Development prior to the Calculation Date,

"Private Rental Sector Forward Funding Arrangement" means a Forward Funding Arrangement in which the Owner will retain the whole or part of the Development on Completion of Construction as a Private Rental Sector Investment,

"Private Rental Sector Investment" means a Development that will deliver new-build homes for the private rental market, to be retained by the Owner on Completion as an investment,

"Profit Level" means in the case of a Pre Sale when the Gross Margin is equivalent to [10%] of the GDC and in all other cases is when the Gross Margin is equivalent to [18%] of the GDC,

"Public Realm Contribution" the sum of £27,000 (twenty seven thousand pounds) Index Linked to be paid in accordance with the provisions of Policy OB6 of the SPD and which shall be applied by the Council as more particularly described in Schedule 4,

"Regulations" the Community Infrastructure Levy Regulations 2010,

"Retail Price Index" twelve (12) month percentage change in the All Items Retail Price Index published by the Office for National Statistics Centre and in the Monthly Digest of Statistics (or contained in any official publication substituted therefor) or such other index as may from time to time be published in substitution therefor,

"RICS" the Royal Institution of Chartered Surveyors,

"RICS Guidance" the RICS guidance note 1st edition entitled "Financial viability in planning" and assigned reference GN 94/2012 or any replacement, update or amendment of the same,

"Site" the property described in Schedule 1 and shown for the purposes of identification only edged red on the Plan,

"SPD" the City of Salford Council's Supplementary Planning Document entitled "Planning Obligations" (adopted 18 June 2015),

"Transport Contribution" the sum of £3,500 (three thousand five hundred pounds) Index Linked to be paid in accordance with the provisions of Policy OB5 of the SPD and which shall be applied by the Council as more particularly described in Schedule 4,

"UDP" the City of Salford Unitary Development Plan 2004-2016 (adopted 21 June 2006),

"Viability Appraisal" a written appraisal in the form set out in Schedule 5 to assess the Gross Margin required to be provided on the Calculation Date in accordance with the provisions of Schedule 3 of this Agreement Further guidance on the format to follow can be found in the first edition of the Guidance Note published in August 2012 by the Royal Institution of Chartered Surveyors titled "Financial Viability in Planning" or any amendment, update or replacement of the same,

"Viability Assessment Fee" a fee of £125 (one hundred and twenty five pounds) plus VAT per hour to cover the cost of the Council's review of the Viability Appraisal in order to determine whether and the extent to which the Development can support a requirement to provide the Viability Payment,

"Viability Payment" a payment required to be made by the Owner to the Council if the Viability Appraisal shows that the Profit Level as assessed will be achieved and will be the amount by which the Gross Margin exceeds the Profit Level PROVIDED THAT the Viability Payment when added to the Initial Contribution shall be required to be no more than the amount that is needed in order to equal the Maximum Contribution The Viability Payment will be payable within the timescale set out in the provisions contained in Schedule 3,

"Working Day" means any day except Saturday Sunday or a bank holiday and reference to "Working Days" shall be construed accordingly

1 2 the clause headings do not affect this interpretation

1 3 unless otherwise indicated, references to clauses and schedules are to clauses of and schedules to this Agreement and references in a schedule to a part or paragraph are to a part or paragraph of that schedule

1 4 References to any statute or statutory provision include reference to

1 4 1 all Acts of Parliament and all other legislation having legal effect in the United Kingdom as directly or indirectly amended, consolidated, extended, replaced or re-enacted by any subsequent legislation, and

1 4 2 any orders, regulations, instruments or other subordinate legislation made under that statute or statutory provision

1 5 Except for the provisions of Clause 9 references to the Site include any part of it

1 6 References to any party in this Agreement include the successors in title of that party In addition, references to the Council include any successor local planning authority exercising planning powers under the Act [and any successor local highway authority exercising powers under the Highways Act 1980]

1 7 "**Including**" means "**including, without limitation**"

1 8 Any covenant by the Owner or the Council not to do any act or thing includes a covenant not to permit or allow the doing of that act or thing

1 9 If any provision is held to be illegal, invalid or unenforceable, the legality, validity and enforceability of the remainder of this Agreement is to be unaffected

1 10 Words importing the singular meaning where the context so admits include the plural meaning and vice versa

1 11 Words of the masculine gender include the feminine and neuter genders and words denoting actual persons include companies, corporations and firms and all such words shall be construed interchangeable in that manner

2. PLANNING OBLIGATION

This Agreement is made pursuant to section 106 of the Act, section 111 of the Local Government Act 1972, section 1 of the Localism Act 2011 and all other enabling legislation and is a planning obligation for the purposes of section 106 of the Act, with the intent that covenants hereinafter contained shall be enforceable by the Council acting under the powers contained in section 106 or such other enabling powers against the Owner

3. CONDITION PRECEDENT

This Agreement is conditional upon the grant of the Planning Permission and Commencement of Development save for the provisions of Clauses 9, 11, 15, 17 and 18 which shall have immediate effect

4. CONDITION SUBSEQUENT

If the Planning Permission for the Development has not been implemented by the carrying out of a material operation in accordance with the provisions of sections 56, 91 and 93 of the Act or is revoked or modified in whole or in part (other than in approval of an application by or on behalf of the Owner) or quashed or declared unlawful as a result of legal proceedings then this Agreement shall absolutely determine and become null and void but without prejudice to the rights of any party against the other in respect of any antecedent breach

5. THE OWNER'S COVENANTS

The Owner on behalf of himself and any person deriving title to any part of the Site from the Owner hereafter hereby covenants with the Council so as to bind the Site to fully observe and perform the obligations on his part contained in this Agreement including those obligations set out in Schedule 3 and hereby agrees that the Site shall be permanently subject to the obligations, restrictions and provisions specified herein, such obligations being planning obligations for the purpose of section 106 of the Act

6. THE COUNCIL'S COVENANTS

The Council hereby covenants with the Owner to observe and perform the obligations on its part in this Agreement including those obligations set out in the Schedule 4

7. DISPUTE RESOLUTION

7 1 In the event of any dispute arising in connection with any of the terms of this Agreement other than a dispute involving the construction or interpretation of the terms of this Agreement or the enforcement of any decision pursuant to this clause, the same shall unless the Council and the Owner otherwise agree be referred to an Expert or in relation to the Viability Appraisal to a Chartered Surveyor to be appointed by agreement between the Council and the Owner

7 2 If the Council and the Owner are unable to agree on the appointment of an Expert or Chartered Surveyor within thirty (30) days of one party serving notice on the other calling for the appointment of an Expert or Chartered Surveyor, then an Expert or Chartered Surveyor shall be appointed on the application of either party to the President for the time being of the Royal Town Planning Institute or the Royal Institution of Chartered Surveyors as applicable

7 3 Any reference of a dispute to an Expert or Chartered Surveyor shall if the parties are agreed in writing be deemed to be a reference to an expert or chartered surveyor (and not to an arbitrator) whose decision shall be final and binding (save for manifest error) but shall otherwise be deemed to be a reference to an arbitrator pursuant to the Arbitration Act 1996 and any statutory amendment variation substitution or re-enactment thereof

7 4 Any party to this Agreement shall be entitled to submit to the Expert or Chartered Surveyor representations and cross-representations with such supporting evidence as they shall respectively consider necessary and the Expert or Chartered Surveyor shall have regard thereto in making his decision which shall be delivered in writing The reference of any dispute shall include authority to determine in what manner all the costs of the referral shall be paid

8. WAIVER

No waiver (whether expressed or implied) by the Council of any breach or default in performing or observing any of the covenants terms or conditions of this Agreement shall constitute a continuing

waiver and no such waiver shall prevent the Council from enforcing any of the relevant terms or conditions or from acting upon any subsequent breach or default

9. CHANGE IN OWNERSHIP & LIABILITY

9 1 The Owner agrees with the Council to give the Council immediate written notice of any change in ownership of any of its interest in the Site occurring before all the obligations under this Agreement have been discharged such notice to give details of the transferee's full name and registered office (if a company or usual address if not) together with (unless the purchase relates to the entirety of the Site) the area of the Site or unit of occupation purchased by reference to a plan

9 2 No person shall be liable for any breach, non performance and non observance of the covenants, obligations and restrictions contained in this Agreement after it shall have parted with its entire interest in the Site but without prejudice to liability for any subsisting breach arising prior to parting with such interest nor shall this hinder or preclude the Council's rights as the Local Planning Authority to require that the breach, non performance or non observance be remedied after that person has parted with its interest in the Site

10. COUNCIL'S CONSENT OR APPROVAL

Where in this Agreement the consent, agreement or approval of the Council is required to be given by the Council, the Council confirms that such consent, agreement or approval shall not be unreasonably withheld or delayed provided that this shall not fetter the proper discretion of the Council

11. LOCAL LAND CHARGE AND LAND REGISTRY ENTRY

11 1This Agreement is a Local Land Charge and shall be registered as such by the Council

11 2For the purpose of noting this Agreement on the titles of the Owner registered under title numbers GM285080, MAN132927, ~~MAN133125,~~ MAN66994, MAN69951 and MAN69952 at the Land Registry the Owner will on the date hereof provide the Council with completed Form AN1 (or any replacement of this form) together with either a cheque made payable to the Land Registry to cover the requisite fee or alternatively with the Owner's solicitor's completed Land Registry account key number details inserted in the form The Council will arrange for the AN1 (or any replacement of this form) to be registered at the Land Registry and the Owner will supply the Council with a copy of the amended registers as soon as reasonably practicable following their receipt by the Owner from the Land Registry

11 3The Council will upon receipt of a written request of the Owner's or their successors in title, at any time after the obligations set out herein have been fulfilled in their entirety, issue written confirmation thereon and thereafter cancel all related entries in the register of local land charges

11 4The costs of registration and cancellation pursuant to clauses 11 3 above shall be met by the Owner if requested by the Council

12. NON-PROHIBITION ON DEVELOPMENT

Nothing in this Agreement shall prohibit or limit the right to develop any part of the Site in accordance with a planning permission (other than the Planning Permission granted (whether or not on appeal) after the date of this Agreement

13. THE CONTRACTS ACT

Save as provided in respect of the successors in title to the Site or any successor to the relevant statutory functions of the Council this Agreement shall not be enforceable by any third party pursuant to the Contracts (Rights of Third Parties) Act 1999 and no third party shall acquire any benefit rights or claims whatsoever pursuant thereto

14. COMMUNICATION

14 1 Any notice or document to be served on or sent pursuant to this Agreement shall either be delivered personally or sent by recorded delivery service,

14 1 1 to the Council and addressed to the Director at the Council's address above,

14 1 2 to the Owner respectively at their address above,

15. FEES

15 1 The Owner shall pay forthwith to the Council its legal fees reasonably and properly incurred in preparation of this agreement,

15 2 Receipt by the Council of the payment of such sum shall not create any lawyer-client type contractual relationship between the Council and the Owner nor absolve the Owner from any liability or obligation imposed upon them by the terms of this Agreement or by statute or at common law,

15 3 When submitting the Viability Appraisal the Owner shall pay to the Council the related Viability Assessment Fee within 10 Working Days of his receipt from the Council of an invoice detailing the amount

16. INTEREST

If any payment due under this Agreement is paid late Interest will be payable from the date payment is due to the date that payment is received

17. JURISDICTION

This Agreement is governed by and interpreted in accordance with the law of England

18. COMPLETION

The provisions of this Agreement (other than this clause which shall be of immediate effect) shall be of no effect until this Agreement has been dated

EXECUTED as a deed by the parties on the day and year first hereinbefore appearing

SCHEDULE 1

The Site

Land at Grosvenor Road, Walkden, Salford and shown for the purposes of identification only edged red on the Plan



THE Common Seal of THE CITY OF SALFORD was affixed in the Presence of:

AUTHORISED SIGNATORY

SCHEDULE 2

Draft Planning Permission

THE COUNCIL OF THE CITY OF SALFORD
CIVIC CENTRE
CHORLEY ROAD
SWINTON, M27 5BW

TOWN AND COUNTRY PLANNING ACT 1990

DECISION NOTICE : GRANT

PLANNING PERMISSION 18/72094/FUL

Date of Decision: SIGNED

Date of Issue: On behalf of the Council

Applicant:

Mr Anthony Bastain
c/o Mr Farooq Rafiq
Inspire Planning Solutions Ltd
Europa Business Park, Building 67
Bird Hall Lane
Stockport
SK3 0XA

Part 1 – Particulars of Application: **Date of Application:** 6 July 2018

Location of development:
Land At Ashton's Field Farma
Off Grosvenor Road
Walkden
M28 3RP

Particulars of development:
Erection of 18 No. Dwellings with associated access, parking and landscaping works Re-submission of 17/70598/FUL

Part 2 – Particulars of Decision:

The Council of the City of Salford hereby gives notice in pursuance of the provisions of the Town and Country Planning Act 1990 that **permission has been granted** for the carrying out of the development referred to in Part 1 hereof in accordance with the application and plans submitted subject to the following condition(s)

1 The development hereby permitted shall be begun not later than three years beginning with the date of this permission

Reason Required to be imposed by Section 91 of the Town and Country Planning Act 1990 (as amended)

2 The development hereby permitted shall be carried out in accordance with the following approved plans

- Dwg No 2100, Revision P-05 entitled 'Preliminary layout - Option O' prepared by Corstorphine and Wright Architects and dated 19 September 2018,
- Dwg No 14299-2202, Revision P-00 entitled 'Type B - Plans and Elevations' prepared by Corstorphine and Wright Architects and dated 27 July 2017,
- Dwg No 14299-2203, Revision P-00 entitled 'Type C - Plans and Elevations' prepared by Corstorphine and Wright Architects and dated 27 July 2017,
- Dwg No 14299-2204, Revision P-00 entitled 'Type D - Plans and Elevations' prepared by Corstorphine and Wright Architects and dated 27 July 2017;
- Dwg No 14299-2205, Revision P-00 entitled 'Type F - Plans and Elevations' prepared by Corstorphine and Wright Architects and dated 20 March 2018;
- Dwg No 14299-0206, Revision P-00 entitled 'garage Types - Plans and Elevations' prepared by Corstorphine and Wright Architects and dated 31 August 2018.

Reason For the avoidance of doubt and in the interests of proper planning

3 No development shall take place, including any works of excavation or demolition, until a Construction Method Statement has been submitted to and approved in writing by the Local Planning Authority. The approved Statement shall be adhered to throughout the construction period. The Statement shall include

(i) the times of construction activities on site which, unless agreed otherwise as part of the approved Statement, shall be limited to between 9am-6pm Monday to Friday and 9am-12 noon Saturdays only (no working on Sundays or Bank Holidays) Quieter activities which are carried out inside buildings such as electrical works, plumbing and plastering may take place outside of agreed working times so long as they do not result in significant disturbance to neighbouring occupiers,
(ii) details of how traffic will be managed around the site to ensure there is no increased risk to pedestrians and other road users as a result of construction works,
(iii) the spaces for and management of the parking of site operatives and visitors vehicles,
(iv) the storage and management of plant and materials (including loading and unloading activities),
(v) the erection and maintenance of security hoardings including decorative displays and facilities for public viewing, where appropriate,
(vi) measures to prevent the deposition of dirt on the public highway,
(vii) measures to control the emission of dust and dirt during demolition/construction,
(viii) a scheme for recycling/disposing of waste resulting from demolition/construction works,
(ix) measures to minimise disturbance to any neighbouring occupiers from noise and vibration, including from any piling activity,
(x) measures to prevent the pollution of watercourses, and
(xi) a community engagement strategy which explains how local neighbours will be kept updated on the construction process, key milestones, and how they can report to the site manager or other appropriate representative of the developer, instances of unneighbourly behaviour from construction operatives The strategy shall also detail the steps that will be taken when unneighbourly behaviour has been reported A log of all reported instances shall be kept on record and made available for inspection by the Local Planning Authority upon request

Reason· In the interests of the amenity of neighbours in accordance with Retained Policies DES7 and EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework

Reason for pre-commencement condition. The manner in which the site will be development must first be understood and agreed prior to any building works being carried out on site

4 Notwithstanding any description of materials in the application, no above ground construction works shall take place until samples or full details of materials to be used externally on all buildings have been submitted to and approved in writing by the Local Planning Authority Such details shall include the type, colour and texture of the materials to be used and only those materials so approved shall be used in accordance with any terms of such approval

Reason. In order to ensure a satisfactory appearance in the interests of visual amenity in accordance with Policy DES1 of the City of Salford Unitary Development Plan and the requirements of the National Planning Policy Framework

5. Prior to the commencement of the development hereby approved, the developer shall submit to and have approved in writing by the Local Planning Authority details of a scheme of intrusive site investigations concerning both the coal mine entry and areas of shallow coal workings on site These details shall include.

- A report setting out the findings of all investigations;
- Details of how the mine entry and areas of shallow coal workings will be remediated, and
- A timetable for the implementation of all remedial works

The development shall thereafter be carried out in complete accordance with the agreed details unless otherwise agreed in writing by the Local Planning Authority.

Reason To ensure that the site is suitably remediated prior to the commencement of development in accordance with the requirements of the Coal Authority.

Reason for pre-commencement condition: It is imperative that the condition of the site is first understood and safeguarded to ensure that new buildings do not later subside

6 Prior to the commencement of the development hereby permitted (except for enabling works) a Phase 2 Site Investigation report shall be submitted to and approved in writing by the Local Planning Authority This report shall address the nature, degree and extent of any contaminated materials on site and identify and assess risks to receptors, focusing primarily on risks to human health and the wider environment

Reason In the interests of public safety and in accordance with Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework

Reason for pre-commencement condition: Works on site have the potential to liberate contaminated materials and the nature of any such material must first be understood prior to the commencement of the development.

7 Should the Phase 2 assessment required by Condition 6 identify any unacceptable risks to receptors, prior to above ground works commencing the applicant shall submit to and have approved in writing by the Local Planning Authority a contaminated land remediation strategy This strategy shall be prepared by a suitably competent person(s) and the development shall thereafter be carried out in complete accordance with the strategy or any variations thereto as may be agreed in writing by the Local Planning Authority.

Reason In the interests of public safety and in accordance with Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework

8 Pursuant to Condition 6 and prior to the first use or occupation of the development hereby permitted, a verification plan shall be submitted to and agreed in writing by the Local Planning Authority This plan shall detail the evidence, data and information that will be collected to demonstrate (by way of a future verification report) that the works set out in the remediation strategy required by Condition 7 have been completed The plan shall detail any requirements for the long-term monitoring of pollutant linkages, maintenance and contingency arrangements.

Reason· In the interests of public safety and in accordance with Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

9 Pursuant to Condition 8 and prior to the first use or occupation of the development hereby permitted, a Verification Report shall be submitted to and approved in writing by the Local Planning Authority This report shall validate that all required remedial works were completed in accordance with those agreed by the Local Planning Authority

Reason. In the interests of public safety and in accordance with Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework

10. No development shall take place until a strategy for surface water drainage using sustainable drainage methods (including source control measures) and which includes details of how water quality will be improved and how existing surface water discharge rates reduced has been submitted to and approved in writing by the Local Planning Authority. The approved strategy shall be implemented prior to first occupation or use of the development hereby approved unless alternative timescales have been agreed in writing as part of the strategy

Reason. To reduce the risk of flooding in accordance with Retained Policy EN19 of the Salford Unitary Development Plan and the National Planning Policy Framework.

Reason for pre-commencement condition It is imperative that the drainage strategy is fully formulated and incorporated into the layout of the site

11 Prior to the first occupation of the development hereby permitted, the applicant shall submit to and have approved in writing by the Local Planning Authority a sustainable drainage management and maintenance plan for the lifetime of the development This plan shall include, as a minimum.

- Arrangements for adoption by an appropriate public body or statutory undertaker or management and maintenance by a resident's management company, and
- Arrangements for the inspection and on-going maintenance of all elements of the sustainable drainage system to ensure its full operation at all times

The development shall subsequently be completed, managed and maintained in accordance with the approved plan.

Reason. To ensure appropriate arrangements are in place to manage the on-going risk of flooding and pollution during the lifetime of the development in accordance with Retained Policy EN19 of the Salford Unitary Development Plan and the National Planning Policy Framework

12 Notwithstanding the details shown on the approved plans, the development hereby permitted shall not be occupied until full details of both hard and soft landscape works have been submitted to and approved in writing by the Local Planning Authority The details shall include

- Hard surfaced areas and materials,
- Boundary treatments, including the provision of larger trees/plantings alongside the side and rear boundaries of 57 and 59 Trafford Drive respectively.
- The treatments of the private gardens along the northern side of the internal roadway and the Grosvenor Road frontage of the site,
- All external lighting,
- Planting plans, specifications and schedules (including plant sizes, species, numbers/densities) and a scheme for the timing/phasing of works, and
- A minimum of four bird boxes on site and their type.

The landscaping works shall be carried out in accordance with the approved scheme for timing/phasmg or within 18 months of first occupation of the development hereby permitted, whichever is the later

All trees or shrubs planted in accordance with this condition which are removed, uprooted, destroyed, die or become severely damaged or become seriously diseased within 5 years of planting

shall be replaced within the next planting season by trees or shrubs of similar size and species to those originally required to be planted unless the Local Planning Authority gives its consent in writing to any variation.

Reason To ensure that the site is satisfactorily landscaped having regard to its location and the nature of the proposed development and in accordance with Retained Policies DES1 and DES9 of the Salford Unitary Development Plan and the National Planning Policy Framework

13. No development shall commence unless and until an Arboricultural Method Statement (AMS) has been submitted to and agreed in writing by the Local Planning Authority The development shall thereafter be carried out in accordance with the approved AMS

Reason To ensure the appropriate landscape treatment of the site in accordance with the provisions of Retained Policy DES9 of the Salford Unitary Development Plan and the National Planning Policy Framework

Reason for pre-commencement condition It is important to understand the value of any existing trees on site which could be retained and incorporated into the development It is also imperative that appropriate measures are put in place to protect trees on adjacent sites prior to the commencement of development

14 Prior to the first occupation of the development hereby approved, the applicant shall submit to and have approved in writing by the Local Planning Authority a scheme detailing the management and maintenance responsibilities of the estate road and adjacent common landscaped areas This scheme must detail who is responsible for this and set out a schedule of maintenance works that will be carried out as necessary The approved scheme shall thereafter be adhered to

Reason To ensure the appropriate maintenance of the site in the interests of the general amenity of the area in accordance with Retained Policies DES7 and DES9 of the Salford Unitary Development Plan and the National Planning Policy Framework.

Statement of conformity with Article 35 of The Town and Country Planning (Development Management Procedure) (England) Order 2015

The Local Planning Authority worked positively and proactively with the applicant to identify various solutions during the application process to ensure that the proposal comprised sustainable development and would improve the economic, social and environmental conditions of the area and would accord with the development plan These were incorporated into the scheme and/or have been secured by planning condition The Local Planning Authority has therefore implemented the requirement in Paragraph 38 of the NPPF

Notes to applicant -

1 The applicant is to enter into a s278 legal agreement with the Local Highways Authority and provide the funding necessary to facilitate all off-site highways works required to accommodate the development

2 Full construction details of the site access point off Trafford Road, including details of drop kerbs and tactile paving shall be submitted to and agreed in writing by the Local Highway Authority Construction details of the reconfigured layby on Trafford Drive and the new vehicle crossovers onto Grosvenor Road shall also be submitted and agreed All details as agreed shall be constructed in accordance with the approved drawings

3 A Dilapidation Survey shall be undertaken following the completion of the development to ensure the adopted footway and carriageway has not been damaged.

4 The applicant must ensure that existing utilities (such as BT floor boxes and adopted street lighting) are protected and the permission of the relevant providers to carry out any works within close proximity to these utilities is in place prior to the commencement of building works

5 Any footways altered to accommodate the development must be reinstated using similar materials or a material that is recommended by the Local Highway Authority

6 Any non-permeable boundary treatments adjacent to vehicular entrance points to the site must not exceed a height of 0 6 metres above adjacent ground level Any treatments which exceed this height must be visually permeable, such as decorative steel railings

7 Please note the advice of the Coal Authority as set out in its consultation response dated 28 November 2017 in relation to Planning Application 17/70598/FUL and available for viewing on the Council's electronic case file

8 Please note the advice of United Utilities as set out in its consultation response dated 31 August 2018 and available for viewing on the Council's electronic case file

9 Approved Document Part H of the Building Regulations 2000 establishes a hierarchy for surface water disposal Under Approved Document Part H the first option for surface water disposal should be the use of SUDS, including soakaways and other infiltration measures In all cases it should be established that these options are feasible, can be adopted and properly maintained and would not cause other environmental impacts For example, soakaways and other infiltration measures on contaminated land may cause groundwater pollution and may not be feasible where a high water table exists. Where the intention is to dispose of surface water to a soakaway, this should be shown to work through an appropriate assessment carried out in accordance with Building Research Establishment (BRE) Digest 365

10.The applicant has a duty to adhere to Part 2A of the Environmental Protection Act 1990, the National Planning Policy Framework 2018 and the current Building Control Regulations with regards to contaminated land Responsibility to ensure the safe development of land affected by contamination rests with the developer

11.With respect to gas protection measures the applicant's attention is drawn to BRE 414 - Protection Measures for Housing on Gas-Contaminated Sites In addition to this, the requirements of BS 8845:2015 (Code of Practise for the Design of Protective Measures for Methane and Carbon Dioxide Ground Gases for New Buildings) should be adhered to in relation to installation and the verification requirements of CIRIA C735 (Good Practice on the Testing and Verification of Protection Systems for Buildings against Hazardous Ground Gasses) will need to be submitted

12 The applicant is advised that the verification of gas protection systems needs to be undertaken during the construction phase or it may be difficult to discharge related conditions. This can lead to issues with property searches and/or mortgages.

13 The Conservation of Habitats and Species Regulations 2010 (Amended 2012) prohibits certain activities affecting European Protected Species (EPS) This includes damage to or the destruction of a breeding site or resting place. Please ensure that no vegetation is cleared from the site during bird breeding season (being March to August inclusive) in accordance with the Regulations.

14.The applicant is advised that badgers and common reptiles are protected and if encountered or suspected on site during the construction phase, work must stop immediately and the advice of a suitably qualified ecologist sought

15 This permission only authorises the carrying out of development which is entirely in accordance with the approved plans and other details submitted In the event of any intended amendments to these details and plans, including the siting of the development in relation to site boundaries or adjacent properties, the developer must first contact the Development Management Section before any development is commenced for advice regarding the necessity to obtain further permission

16 This Notice **does not** constitute an approval under the Building Regulations 2000 and you should contact the Local Authority Building Control Section for further information For further information visit the City of Salford web site www.salford.gov.uk under the heading 'Living'

17 Please note that any new building(s) or any existing building(s) being converted into separate dwellings (including apartments etc) or businesses will legally require an official postal address This is enforceable

under the Public Health Act 1925 The Developer should contact Salford City Council who will process the postal addressing. For further information visit the City of Salford web sitetwww.salfordtgov.uk under the heading 'Living't

18 This Notice **does not** constitute an approval of the highway layout for adoption in accordance with the Highways Act 1980 and you should contact the Local Authority Engineering Design Section for further information regarding the requirements for highway adoption For further information visit the City of Salford web site www.salford gov uk under the heading 'Living'

19 Salford City Council would like to encourage all residents and businesses to help make the City a better place to live and work by transforining hard grey aieas into living, planted places that enrich lives The Royal Horticultural Society is running a campaign to "Green Grey Britain" which the City Council fully supports We are asking all applicants to view the RHS website at www rhs org uk and to pledge support for the campaign through the implementation of landscaping schemes/proposals which form part of planning permissions granted by the City Council

Useful contacts -

Dilapidation Survey

The developer shall contact John Horrocks to arrange a full dilapidation/condition survey of all adopted highways surrounding the site prior to works commencing Tel 0161 603 4046

Highway Permits/Licensing

Applications for all forms of highway permits/licenses shalltbe made in advance of any works being undertaken on the adopted highway Note. NO boundary fencing shall be erected or positioned on any part of the adopted highway without first seeking the relevant permits/licenses from the Local Highway Authority Tel. 0161 603 4046

General Highway Information·

Requests for general Information regarding the adopted highway network shall be directed to the Local Highway Authorityt- John Horrocks - 0161 603 4046

S278 works:

The Developer should contact Neil Ashmall to arrange for the S278 element of the development Mr Ashmall may be contacted on 0161 779 4883

Appeals to the Secretary of State

- If you are aggrieved by the decision of your local planning authority to refuse planning permission for the proposed development or to grant it subject to conditions, then you can appeal to the First Secretary of State under section 78 of the Town and Country Planning Act 1990
- If you want to appeal against your local planning authority's decision then you must do so within 6 months of the date of this notice except where one of the following applies
    - If this is a decision to refuse planning permission for which an enforcement notice has been served for the same or substantially the same land and development either within 2 years prior to the date on which the application was submitted or before the application was determined, if you want to appeal against your local authority's decision then you must do so within 28 days of the date of this notice, or
    - If this is a decision to refuse planning permission and an enforcement notice is served for the same or substantially the same land and development after the date of this notice, if you want to appeal against your local authority's decision then you must do so within 28 days from the date the enforcement notice is served, unless the effect would be to extend the period beyond the usual time limit for cases not involving an enforcement notice (i e 6 months of the date of this notice)

- Appeals must be made using a form which you can get from the Planning Inspectorate at Temple Quay House, 2 The Square, Temple Quay, Bristol, BS1 6PN or online at www planningportal.gov uk/pcs
- The Secretary of State can allow a longer period for giving notice of an appeal, but he will not normally be prepared to use this power unless there are special circumstances which excuse the delay in giving notice of appeal
- The Secretary of State need not consider an appeal if it seems to him that the local planning authority could not have granted planning permission for the proposed development or could not have granted it without the conditions they imposed, having regard to the statutory requirements, to the provisions of any development order and to any directions given under a development order
- In practice, the Secretary of State does not refuse to consider appeals solely because the local planning authority based their decision on a direction given by him

Purchase notices

- If either the local planning authority or the Secretary of State refuses permission to develop land or grants it subject to conditions, the owner may claim that he can neither put the land to a reasonably beneficial use in its existing state nor render the land capable of a reasonably beneficial use by the carrying out of any development which has been or would be permitted.
- In these circumstances, the owner may serve a purchase notice on the Council in whose area the land is situated This notice will require the Council to purchase his interest in the land in accordance with the provisions of Part VI of the Town and Country Planning Act

Compensation

In certain circumstances compensation may be claimed from the Local Planning Authority if permission is refused or granted subject to conditions by the Secretary of State on appeal or on reference of the application to him/her

These circumstances are set out in section 114 and related provisions of the Town and Country Planning Act 1990

SCHEDULE 3

THE OWNER'S GENERAL COVENANTS

The Owner hereby covenant with the Council as follows

1 To notify the Council in writing within 7 (seven) Working Days of Commencement of Development,

2 To provide prior notification to the Council in writing at least 14 (fourteen) Working Days in advance of the Anticipated Date of Completion of Construction of the first Dwelling and thereafter as calculated by reference to the total number of Dwellings in each case the Anticipated Date of Completion of Construction of 50% of the Dwellings and the Anticipated Date of Completion of Construction of 75% of the Dwellings and to pay to the Council the Initial Contribution within 7 (seven) Working Days as follows

2 1 25% of the Initial Contribution on Completion of Construction of the first Dwelling,

2 2 50% of the Initial Contribution on Completion of Construction of 50% of the Dwellings, and

2 3 the balance of the Initial Contribution on Completion of Construction of 75% of the Dwellings

3 Within 14 (fourteen) Working Days of the Calculation Date

3 1 to confirm to the Council in writing whether the Development was subject to a Pre Sale, and

3 2 to provide the Council with a copy of the Viability Appraisal for possible agreement by the Council,

4 Within 28 (twenty eight) Working Days of its receipt of the Viability Appraisal the Council shall give written notice to the Owner either.-

4 1 Stating that it accepts the Viability Appraisal or

4 2 Correcting or challenging any of the amounts or conclusions included in the Viability Appraisal and giving details of the disputed amounts or conclusions,

5 In the event that the Council shall have served a notice on the Owner pursuant to paragraph 4 2 of this Schedule 3 the Owner and the Council shall use reasonable endeavours to reach agreement in respect of the Viability Appraisal but if the Owner and the Council shall have failed to agree the Viability Appraisal within 28 Working Days of the notice served by the Council pursuant to Paragraph 4 2 of this Schedule 3, then the matter in dispute shall be referred to the Chartered Surveyor, in accordance with the provisions of Clause 7 with the Chartered Surveyor being requested that he/she should as soon as practicable issue a written determination as to the matter in dispute and a written determination of the correct Viability Appraisal, which both Parties agree will be final and binding upon them,

6 The Viability Appraisal not by way of limitation shall include and confirm

6 1 the GDV,

6 2 the GDC,

7 Viability Payment

7 1 In the event that the Viability Appraisal is agreed by the Council or determined pursuant to paragraph 5 of this Schedule 3 and the information contained therein shows that in accordance with the provisions of this Agreement a Viability Payment is due then the Owner shall pay to the Council the Viability Payment PROVIDED ALWAYS that this does not

exceed the Maximum Contribution and all the Viability Assessment Fee in accordance with paragraph 7 2 below,

7 2 The Owner shall pay to the Council the Viability Payment within 28 days of the agreement by the Council of the Viability Appraisal or if applicable within 28 Working Days of the Viability Appraisal being determined pursuant to Paragraph 5 of this Schedule 3

7 3 In the event that the information contained in the Viability Appraisal (as agreed by the Council or determined pursuant to paragraph 5 of this Schedule 3) shows that a Viability Payment is not due then it is agreed by the Council that the Viability Payment shall not be payable although the Viability Assessment Fee shall still be due

7 4 The Owner covenants with the Council that it will indemnify the Council to the full extent of any Viability Payment and related Viability Assessment Fee due that remains unpaid on the expiry of the time limit for payment set out in paragraph 7 2 of this Schedule (the "Outstanding Amount") and will pay the Outstanding Amount to the Council within 28 days of its receipt of a written request from the Council for the Outstanding Amount

SCHEDULE 4

The COUNCIL'S COVENANTS

The Council hereby covenants with the Owner as follows

1 To use the Initial Contribution in the following manner

1 1 £3,500 (being part of the Transport Contribution) towards the promotion of traffic regulations orders adjacent to the Site,

1 2. £18,165 (being part of the Education Contribution) to increase capacity at primary school(s) within Pupil Planning Area 1 (Walkden North and Little Hulton),

1 3 £51,900 (being part of the Open Space Contribution) towards improvements to St Mary's Park and Blackleach Park, and

1 4 £16,435 (being part of the Public Realm Contribution) towards improvements to access and the pathway networks in and around St Mary's Park and Blackleach Park and/or to improve the public realm along Bolton Road

2 To use any Viability Payment due in the following manner

2 1 To increase capacity at primary school(s) within Pupil Planning Area 1 (Walkden North and Little Hulton)

2 2 Towards improvements to St Mary's Park and Blackleach Park,

2 3 Towards improvements to access and the pathway networks in and around St Mary's Park and Blackleach Park and/or to improve public realm along Bolton Road, and/or

2 4 off-site Affordable Housing in accordance with paragraph 4 38 of the SPD,

PROVIDED THAT when combined with the Initial Contribution no more than

2 5 The Education Contribution is allocated to Pupil Planning Area 1,

2 6 The Open Space Contribution is allocated towards improvements to St Mary's Park and Blackleach Park, and

2 7 The Public Realm Contribution is allocated towards improvements to access and the pathway networks in and around St Mary's Park and Blackleach Park and/or to improve the public realm along Bolton Road

3 At the written request of the Owner to provide written confirmation of the discharge of the obligations contained in this Agreement when satisfied that such obligations have been performed

4 That none of the projects or infrastructure items that the Initial Contribution is funding or contributing to have been funded or contributed to by more than four other s 106 Agreements since 6 April 2010 and that the Council has reviewed its records and is satisfied that the Initial Contribution is not in breach of the requirements of Regulation 123 of the Community Infrastructure Levy Regulations 2010,

5 In the event that any part of the Contributions paid to the Council has not been spent by the Council within 10 years of the date on which the Contributions was paid to the Council the Council shall on the written request of the Owner repay to the party/person which paid the Contributions

such unspent balance (excluding any such sums in respect of which though not yet expended the Council has contractually committed to expend) together with interest on that balance calculated from the date of payment to the Council to the date of repayment

6 The Council shall provide written details of any expenditure incurred by the Council using the Contributions within 20 Working Days of a written request to do so from the party/person who paid those Contributions to the Council

7 To issue the Planning Permission within 2 Working Days of the date hereof

SCHEDULE 5

VIABILITY TEMPLATE

Site location, SALFORD

Open Market Gross Development Value (GDV) £

Open Market Net Development Value (NDV) = GDV less Sales Incentives £

GDV of Pre Sale (PS) Element (Contract to be evidenced) £

Profit Level – based upon x% of GDV of Open Market Value	£
Profit Level – based upon x % of GDV of PS Element	£
All in build cost – [Includes - House Build (Superstructure), Plot Costs (Incl Substructure), Infrastructure, Overheads and Prelims]	£
Schedule of abnormals TBA	£
Contingency on build costs and abnormals TBA	£
Professional fees on build costs and abnormals TBA	£
Sales and Marketing Costs TBA	£
Initial Contribution	£xxx
Finance cost of TBA	£
Interest cost on Deposits - TBA	£
Tax Relief - TBA	-£
Agreed Land Value (The Lower of 1) Benchmark Land Value set at Planning Consent Stage of £xxxx or 2) Actual Land Value – to be evidenced)	£
Agreed Stamp Duty @ 4%	
Agreed Site Legal & Agents Fees @ 1% of Land Value	
TOTAL GROSS DEVELOPMENT COSTS (GDC)	
Surplus= NDV - GDC	
VIABILITY PAYMENT – xxxxx	

NB – Viability Payment Cannot Exceed [xxxxx]

7989

THE COMMON SEAL of **THE COUNCIL OF THE CITY OF SALFORD** was affixed in the presence of:

AUTHORISED SIGNATORY

Signature:

Name (in block capitals) M. CREDITHERS-WATT

SIGNED AS A DEED by
RIZQ DA'UD AL-SAFI

in the presence of:

Witness signature:

Witness name: DAUD

Witness address: 32 WELLINGTON ROAD ECCLES M30 0SP

Occupation: CONVEYANCING TECHNICIAN

EXECUTED AS A DEED by
EGM HOLDINGS LIMITED
acting by a director

Signature:

Name: RIZQ DA'UD AL-SAFI

IN THE PRESENCE OF:

Signature:

Name: DAUD

Address: 32 WELLINGTON ROAD ECCLES M30 0SP